

24CMCV01315 24CMCV01315

County: los-angeles

Division: Civil Law and Motion

Department: A

Hearing date: 2026-07-16

Motion: DEFENDANT ABREANNA MORALES'S MOTION FOR PROTECTIVE ORDER.

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Case Number: 24CMCV01315 Hearing Date: July 16, 2026 Dept: A

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

MARICELA BAUTISTA,

Plaintiff,

vs.

RAYMOND

CALDERAZ, et al.,

Defendants.

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CASE NO: 24CMCV01315

[TENTATIVE]

ORDER RE: DEFENDANT ABREANNA MORALES'S MOTION FOR PROTECTIVE ORDER.

Dept.

A

DATE:

July 16, 2026

TIME:

8:30 A.M.

COMPLAINT

FILED: 08/28/2024

TRIAL:

01/20/2027

MOVING

PARTY: Defendant Abreanna

Morales

RESPONDING

PARTY: Plaintiff Maricela Bautista

1.

Background

This is a motor vehicle collision action. Plaintiff Maricela Bautista ("Plaintiff") alleges that on August 30, 2022, Plaintiff was a passenger in a vehicle driven by defendant Abreanna Morales. Plaintiff alleges that defendants Raymond Calderaz and Abreanna Morales negligently operated their vehicle so as to cause their vehicles to collide, causing Plaintiff personal injury.

2.

Discussion

a. Motion for Protective

Order

Defendant Abreanna

Morales ("Movant") moves for a protective order directing that Plaintiff shall propound no further discovery into Movant's medical condition and relieving Movant of any obligation to respond to Plaintiff's Requests for Admission, Set Three; Special Interrogatories, Set Three; and Form Interrogatories, Set Three, No. 17.1. Movant contends that she has not placed her physical or medical condition at issue and therefore the requested discovery is irrelevant and invasive of Movant's privacy. In opposition, Plaintiff contends that Movant previously testified as to her medical condition in a prior lawsuit and therefore that Movant's physical and medical condition are at issue in this lawsuit.

"The court, for good

cause shown, may make any order that justice requires to protect any party or other person from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense." (Code Civ. Proc. § 2031.060, subd. (a).) Such a motion will include a meet and confer declaration pursuant to Code Civ. Proc. §

2016.040. (See *id.*) Protective orders may be also granted on motion of the deponent or any party, or any third person who could be affected by the disclosure (e.g., a nonparty whose privacy would be impaired). (See Code Civ. Proc. § 2025.420, subd. (a).)

The decision upon whether to enter a protective order lies within the sound discretion of the court. (See *Raymond Handling Concepts Corp. v. Sup. Ct.* (1995) 39 Cal.App.4th 584, 588, 591; see also *Meritplan Ins. Co. v. Superior Ct.* (1981) 124 Cal.App.3d 237, 242.) Moving parties have the burden to show good cause for protective order. (See *Emerson Elec. Co. v Sup. Ct.* (1997) 16 Cal.4th 1101, 1110.) In order to establish good cause, the moving party must make a factual showing demonstrating a specific harm that would arise from denial of the protective order. (See *Nativi v. Deutsche Bank National Trust Co.* (2014) 223 Cal.App.4th 261, 317-318 (*Nativi*).)

Code of Civil Procedure § 2019.030 permits the court to restrict the frequency or extent of use of a discovery method if it finds that “The discovery sought is unreasonably cumulative or duplicative, or is obtainable from some other source that is more convenient, less burdensome, or less expensive” or “[t]he selected method of discovery is unduly burdensome or expensive, taking into account the needs of the case, the amount in controversy, and the importance of the issues at stake in the litigation.” (Code Civ. Proc., § 2019.030.) Code of Civil Procedure § 2017.020 provides that “the court shall limit the scope of discovery if it determines that the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence.” (Code Civ. Proc. § 2017.020.)

Plaintiff contends that the court, in its July 2, 2026 minute order, found that Movant’s medical condition was discoverable. Plaintiff misconstrues the court’s order. The court, at that time, found that what Movant publicly testified to in her previous lawsuit was discoverable, but that direct inquiry into Movant’s physical or medical condition was not discoverable.

Plaintiff also contends that Movant, after the filing of the instant motion, served substantive responses to Requests for Admission, Set Three, Nos. 51 through 61 and Special

Interrogatories, Set Three, Nos. 75 through 102. The motion is therefore moot as to those discovery requests. Plaintiff contends that Movant's service of substantive response to some of the discovery at issue demonstrates that Plaintiff's objections are not privacy driven; however, Plaintiff provides no authority indicating that the provision of substantive responses to some discovery requests waives objections to all other discovery requests in the same set.

When

a party objects to a potential invasion of privacy, the party claiming a privacy interest bears the burden of proof on the issue. "The party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious." (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 531.) Where the party claiming a privacy interest demonstrates that the requested discovery constitutes an obvious invasion of interests fundamental to personal autonomy, the request must be supported by a compelling interest to overcome the producing party's privacy right. (*Id.* at p. 557.) However, where the extent and nature of the invasion is lesser, the court must balance the producing party's privacy interest, expectation of privacy, and the seriousness of the invasion against the requesting party's countervailing interests, taking into account possible protective measures or feasible alternatives to obtain the same information. (*Id.* at p. 552.)

A person has a right of

privacy to information contained in their medical records. (*Grafilo v. Wolfsohn* (2019) 33 Cal.App.5th 1024, 1034.) This privacy

interest is fundamental to personal autonomy. (See *Hill v. National Collegiate Athletic Assn.*

(1994) 7 Cal.4th 1, 35-36.) Movant's physical and medical condition are not at issue in this action because Movant has made no claims in this action for personal injury, irrespective of what Movant claimed in a different action.

Plaintiff

contends that discovery into Movant's medical condition is proper because both Plaintiff and Movant occupied the same vehicle in the same collision, and therefore Movant's medical condition constitutes evidence of the severity of the collision. However, this information may be obtained through examination of Plaintiff's medical condition without intruding on Movant's privacy right.

Therefore,

information as to Movant's physical or medical condition is not discoverable and is the proper subject of a protective order. However, there is no right to privacy as to public statements, including testimony, made in the past. (Cox Broadcasting Corp. v. Cohn (1975) 420 U.S. 469, 492-493.)

Based

on the court's review of Requests for Admission, Set Three; Special Interrogatories, Set Three; and Form Interrogatories, Set Three, No. 17.1, provided as Exhibit A through C to the declaration of attorney Bradley V. Mahlstedt, the court finds that:

Requests

for Admissions, Set Three, Nos. 62 through 107 solely concern Movant's prior testimony, and therefore seek discoverable information.

Special

Interrogatories, Set Three, Nos. 35 through 74 request information directly related to Movant's medical condition. Although Movant may have previously testified as to her medical condition in a different action, this does not place Movant's medical condition at issue in this action and this information remains protected.

Form

Interrogatories, Set Three, No. 17.1 does not concern Movant's physical or medical condition. A protective order will not be granted as to this request.

The

court will therefore grant in part Movant's motion for a protective order, consistent with the above findings.

b. Sanctions

Movant

requests monetary sanctions against Plaintiff and her counsel of record, Peerali Law, in the amount of \$4,260, based on Attorney Mahlstedt's hourly rate of \$360 across seven hours preparing the instant motion and an anticipated four hours spent reviewing the opposition, preparing a reply, and attending the hearing, as well as a \$300 filing fee.

“The court shall impose a monetary sanction under Chapter 7 against any party, person, or attorney who unsuccessfully makes or opposes a motion for a protective order, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code of Civil Procedure § 2017.020, subd. (b).)

Plaintiff contends that she acted with substantial justification because the requested discovery is relevant, narrowly tailored, and otherwise discoverable. However, the court has found that, although some of the requested discovery is proper, another part improperly seeks discovery into Movant's private medical information.

Plaintiff also contends that Movant's notice of motion only requests sanctions against Plaintiff and Peerali Law, without identifying individual attorneys of record by name as targets for personal liability. It is not clear how this is an issue, as Movant simply has not requested sanctions against individual attorneys.

As Plaintiff has failed to show substantial justification, the court will award monetary sanctions in connection with this motion. The court finds the requested hourly rate to be reasonable. In light of the lack of reply, the court finds the requested hours to be unreasonable and will reduce them accordingly. The court will therefore award monetary sanctions in the total amount of \$3,540.

3.

Conclusion

Based

on the foregoing, the court GRANTS IN PART Movant's motion for a protective order. The court GRANTS Movant's request for a protective order directing that Plaintiff shall propound no further discovery into Movant's private medical history, symptoms, diagnoses, imaging, treatment, or medical providers, unless Movant puts her medical condition or history at issue in this action. The court GRANTS Movant's request for relief of any obligation to respond to Special Interrogatories, Set Three, Nos. 35 through 74. The court DENIES Movant's request for relief of any obligation to respond to Requests for Admission, Set Three, Nos. 62 through 107 and Form Interrogatories, Set Three, No. 17.1.

The
court GRANTS Movant's request for monetary sanctions jointly and severally
against Plaintiff and her attorneys of record, Peerali Law, in the amount of
\$3,540, to be paid not later than August 16, 2026.

Movant is ordered to give notice.

IT IS SO ORDERED.

DATED: July 16, 2026

Hon. Elizabeth L. Bradley

Judge of the Superior Court